



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: PODS Case Nos. C-032433 and C-032841 regarding Sergeant Saidul Islam

Date: December 15, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Sergeant Islam issued an unlawful summons and interfered with the use of a recording device. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Sergeant Islam will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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March 28, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Saidul Islam (Tax Reg #936798, PODS C-32433 & C-32841)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charges along with a penalty of Training was agreed upon and signed by all parties on February 15, 2025. Assistant Deputy Commissioner Vanessa Facio-Lince endorsed the negotiated settlement on March 11, 2025.

In PODS C-32433, on July 11, 2023, at 9720 Foster Avenue in Brooklyn at 8.45pm, Sergeant Islam and fellow officer pulled over a civilian named [REDACTED]. Mr. [REDACTED] was issued a summons for numerous traffic violations, including driving without lights and excessive honking. BWC captured that Mr. [REDACTED] asked to take a photograph of Sgt Islam's shield number. In response, Sergeant Islam stated that he could not do so and walked away. Individuals have a right to record police activity, and it was improper for Sergeant Islam to refuse to allow Mr. [REDACTED] to photograph his shield number.

In PODS C-32841, on August 18, 2023, Sergeant Islam and a number of other officers approached and detained the occupants of a parked vehicle at 8925 Avenue D in Brooklyn. After an interaction with the occupants, a determination was made to bring all four occupants of the vehicle back to the precinct house to issue summonses. Sergeant Islam was the supervising officer and verified the summonses that were written by two of his officers. The charges involved one summons written for [REDACTED] for disorderly conduct and one summons written for [REDACTED] for disorderly conduct. A review of multiple body-worn camera recordings that captured the incident determined that neither civilian had done anything that would constitute disorderly conduct. Therefore, it was improper for Sergeant Islam to have approved the summonses.

For the charge of interference with a recording device in C-32433, the disciplinary matrix lists a mitigated penalty of the forfeiture of ten (10) vacation days, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of forfeiture of thirty (30) vacation days. For the charges of an enforcement action involving an abuse of authority in C-32841, the disciplinary matrix lists a mitigated penalty of the forfeiture of ten (10) vacation days, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of Termination.

The negotiated settlement deviates from NYPD disciplinary guidelines as to all charges for the following reasons:

Sergeant Islam's twenty years of service, the fact that he was rated as 9 out of 10 in his most recent evaluation and the fact that Sergeant Islam has received 17 excellent police duty recognitions and 22 meritorious police duty recognitions throughout his career.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board